Transparency, Accountability, and the Right to Know: A Comprehensive Analysis of Accessing Garda Identities for Civil Litigation

1. Introduction: The Intersection of Liberty, Identity, and Accountability

In the architecture of the modern democratic state, the relationship between the citizen and the coercive power of the state is defined by accountability. The monopoly on the use of force held by the police—in Ireland, An Garda Síochána—is legitimized only by the strict adherence to legal frameworks that ensure transparency. When a citizen is deprived of their liberty, subjected to the physical control of the state, and potentially injured in the process, the identity of the agents exercising these powers ceases to be a private matter. It becomes a fundamental component of the legal record, essential for the vindication of constitutional rights.

This report addresses the complex legal and procedural landscape facing a claimant who has been arrested, processed, and released without charge, yet finds themselves blocked from accessing the basic identifiers—names and badge numbers—of the arresting officers. The scenario presented involves a Subject Access Request (SAR) that yielded only "dates" and incomplete data regarding "bags" (property logs), "reasons," and "numbers." This obstruction, ostensibly grounded in data protection legislation, creates a significant barrier to the constitutional right of access to the courts, particularly for a plaintiff seeking to initiate civil proceedings for personal injuries.

The core thesis of this analysis is that the withholding of officer identities in the context of an arrest that resulted in "no criminal record" is a bureaucratic default that often fails to withstand rigorous legal scrutiny. While the General Data Protection Regulation (GDPR) [1] and the Data Protection Act 2018 provide the state with mechanisms to redact third-party data, these mechanisms are frequently misapplied to the identities of public servants acting in their statutory capacity. Furthermore, independent of data protection law, the **Criminal Justice Act 1984 (Treatment of Persons in Custody in Garda Síochána Stations) Regulations 1987** [3] creates a parallel and often superior statutory right to the "Custody Record"—a document that, by law, must contain the very names and property logs the user seeks.

This report provides an exhaustive examination of the hierarchy of rights at play. It explores the tension between the privacy rights of individual Garda members and the administration of justice. It analyzes the specific statutory instruments governing custody records and property management ("bags"). Finally, it details the civil litigation strategies—including the pivotal

Norwich Pharmacal jurisdiction and the recent *Randall v Garda Commissioner* precedent—that allow a plaintiff to compel the disclosure of identities when administrative requests fail.

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2. The Data Protection Regime: The Mechanics of Refusal

To understand why the user's request was likely refused, and how to dismantle that refusal, one must first dissect the legal framework under which An Garda Síochána processes such requests. The refusal is rarely an arbitrary act of malice; rather, it is the systemic application of specific exemptions within the Data Protection Act 2018 (DPA 2018) and the Law Enforcement Directive (LED).

2.1 The Dichotomy of "Personal Data" in Policing

At the heart of the refusal is the definition of "personal data." Under **Article 4(1) of the GDPR**, personal data is any information relating to an identified or identifiable natural person. In the context of an arrest, the record contains the data of two distinct subjects:

1. **The Data Subject (The User):** The fact that *they* were arrested, the time *they* arrived, the injuries *they* sustained.
2. **The Third Party (The Garda):** The fact that *Garda X* performed the arrest, wrote the report, or seized the property.

When a user submits a Subject Access Request (SAR), the Garda Information Services (GIS) or Data Protection Unit views the officer's name as "mixed personal data." The default position of many data controllers is to protect the privacy of the third party (the employee) by redacting their identity, relying on **Section 60(3)(b) of the DPA 2018**, which states that the right of access shall not adversely affect the rights and freedoms of others.[5]

However, this interpretation is legally fragile in the context of policing. The "rights and freedoms" of a uniformed officer to privacy regarding their on-duty conduct are significantly circumscribed by their public office. The European Court of Justice and Irish courts have consistently held that public officials acting in their official capacity have a lower expectation of privacy than private citizens. The name of an arresting officer is not merely "third-party data"; it is a constituent element of the legality of the arrest itself. An arrest made by an anonymous individual is indistinguishable from a kidnapping; the authority derives from the office, and the office is identified by the member's name and number.

2.2 The Law Enforcement Directive (LED) and Section 94

Processing of personal data by competent authorities for the purposes of the prevention, investigation, detection, or prosecution of criminal offences is governed not by the general GDPR, but by the **Law Enforcement Directive (EU) 2016/680**, transposed into Irish law by **Part 5 of the Data Protection Act 2018**.[6]

Section 91 of the 2018 Act grants the right of access. However, **Section 94** provides a

powerful statutory basis for restriction. The Garda Commissioner may restrict access, wholly or partly, where necessary and proportionate to:

- **(a)** Avoid obstructing official or legal inquiries, investigations, or procedures.
- **(b)** Avoid prejudicing the prevention, detection, investigation, or prosecution of criminal offences or the execution of criminal penalties.
- **(c)** Protect public security.
- **(d)** Protect national security.
- **(e)** Protect the rights and freedoms of others.[8]

In practice, when a user requests a file related to an arrest, the system flags it as a "Law Enforcement" file. If the file is marked "Active" or if there is any ambiguity about the case status, the Section 94 restriction is applied broadly. This is often an automated or semi-automated bureaucratic response rather than a nuanced legal assessment of the specific request.

2.3 The "No Criminal Record" Pivot

The user's statement—*"I still have no criminal record for all of those arrest"*—is the critical lever that disrupts the standard Section 94 defence.

If an individual has been released without charge, or if the Director of Public Prosecutions (DPP) has directed "No Prosecution," or if they have been acquitted, the "prevention, detection, investigation or prosecution" rationale for restriction (Section 94(3)(b)) loses its validity.

- **Closed Investigations:** Once an investigation is closed with no adverse finding, the state's interest in secrecy diminishes significantly. The Data Protection Commission (DPC) has explicitly noted that "once legal matters in relation to those cases are concluded, the individuals may re-apply for a copy of their data as set out in Section 91".[10]
- **The "Prejudice" Test:** The Commissioner must show that releasing the officer's name *now* would prejudice the prevention of crime *in the future*. In the absence of a specific threat to the officer's safety (which must be evidenced, not assumed), there is no lawful basis under the LED to withhold the identity of a public servant who interacted with a citizen in a closed matter.

2.4 The Litigation Exemption (Section 60(3)(a)(iv))

A more sophisticated, though equally contestable, ground for refusal is **Section 60(3)(a)(iv)** of the DPA 2018. This allows restrictions for "the establishment, exercise or defence of legal claims".[12]

- **The State's Argument:** The Gardaí may argue that because the user has indicated an intention to sue (or because the request implies litigation), the records are now "privileged" or prepared in contemplation of litigation.
- **The Counter-Argument:** This exemption is designed to protect *legal advice* and *litigation strategy* (Legal Professional Privilege). It is not designed to cloak the *factual record* of the event. The identity of an arresting officer is a fact, not a legal opinion. To

use this section to hide the identity of a potential defendant is an abuse of the statute, effectively using Data Protection law to frustrate the administration of justice in the civil courts.

The refusal the user received ("dates only") is typical of a Section 94 restriction applied to a "mixed data" file. It is a defensive posture by the data controller. However, as the subsequent sections will demonstrate, it is not the final word on the matter. The user's right to this information is anchored more firmly in criminal procedure and civil justice than in data protection law.

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3. The Statutory Right: The Custody Record and "Bags"

While the DPA 2018 is a general framework for data rights, the **Criminal Justice Act 1984 (Treatment of Persons in Custody in Garda Síochána Stations) Regulations 1987** (S.I. No. 119 of 1987) is a specific statutory instrument that governs the precise scenario of the user's detention. These regulations create positive legal duties that arguably override the discretionary exemptions of the DPA.

3.1 The Custody Record as a Statutory Instrument

The "Custody Record" is not merely a police file; it is a statutory document created under the authority of the Oireachtas. **Regulation 6** of the 1987 Regulations mandates the creation of this record for every person in custody.

3.1.1 Mandatory Content and Identification

The Regulations are prescriptive about what the record *must* contain. Crucially, it links specific actions to specific, identified members:

- **Regulation 4 (Member in Charge):** The Superintendent must appoint a "Member in Charge" (MIC) to oversee the custody area. This is a statutory role with specific legal liabilities. The MIC's name and rank must be recorded.
- **Regulation 6 (Arrest Details):** The record must show the time of arrival and the *reasons* for detention. Implicit in recording the arrest is the identity of the arresting member who hands over the prisoner.
- **Regulation 12 (Interviews):** The record must log the duration of interviews and the names of the interviewing members.
- **Regulation 16 (Property/"Bags"):** This is directly relevant to the user's query regarding "bags."

3.2 The "Bags" Query: Regulation 16 and Property Logs

The user specifically requested information on "bags," referring to the property bags or logs where personal effects are stored upon arrest. **Regulation 16** of the 1987 Regulations governs this process in strict detail [13]:

1. **Recording:** All articles taken from the person must be listed in the custody record.

2. **Signature:** The record of property must be *signed* by the Member in Charge and by the arrested person.
3. **Refusal:** If the person refuses to sign, this must be noted.

Significance for Identification:
Because the property log is a signed document involving a transaction between the detainee and the Member in Charge, the identity of the officer handling the "bags" is a matter of direct, acknowledged interaction.

- **Legal Implication:** If the Gardaí refuse to provide the name of the officer who signed the property log, they are withholding a document that the user themselves was asked to sign. One cannot be party to a signed legal inventory and yet be denied the identity of the counter-party.
- **Civil Tort of Detinue:** If any property was damaged or lost (as "bags" might imply a concern over possessions), the user has a potential claim for **Detinue** or **Conversion**. Identifying the specific officer who had custody of the keys/bags is essential for establishing the chain of bailment.

3.3 Regulation 24: The Unqualified Right of Access

The most powerful tool in the user's arsenal is **Regulation 24(2)** of S.I. 119/1987. It states: *"When a person ceases to be in custody, he or his legal representative shall, on request made within twelve months thereafter, be supplied as soon as practicable with a copy of the custody record relating to him or of such entries in it as he may specify.".*[3]

3.3.1 Analysis of Regulation 24 vs. GDPR

- **"A Copy of the Record":** The Regulation entitles the person to a *copy of the document itself*, not just a "summary of personal data" as provided under GDPR.
- **No Redaction Clause:** Unlike the DPA 2018, S.I. 119/1987 does not contain a clause allowing the redaction of the Member in Charge's name for privacy reasons. The Member in Charge is a statutory functionary. Their identity is integral to the validity of the detention record.
- **The 12-Month Limit:** The Regulation specifies a request window of "twelve months thereafter."
    - **If the user is within 12 months:** The refusal to provide an unredacted copy is a direct breach of Statutory Instrument 119/1987.
    - **If the user is outside 12 months:** While the *automatic* statutory right under Reg 24 may lapse, the *nature* of the document as a public accountability record remains. The user can argue that the GDPR request should be fulfilled by releasing this specific document, and that the "balancing of rights" should favor disclosure because the document was originally subject to mandatory release.

3.4 The "Reasons" Requirement

The user also requested the "reasons" for every arrest.

- **Generic vs. Specific:** In a standard SAR, the Gardaí might provide a generic code (e.g.,

"Section 4 CJA").
- **Custody Record Requirement:** Under **Regulation 8**, the accused must be informed of the offence. The Custody Record must detail the specific grounds for detention (e.g., "Arrested on suspicion of Assault Causing Harm at Main Street").
- **False Imprisonment:** If the "reason" recorded is vague or legally insufficient, and the user was released without charge, this opens the door to a civil claim for **False Imprisonment**. The specific wording in the Custody Record is the primary evidence for whether the arresting officer had the requisite "reasonable suspicion" at the time of arrest.

3.5 Conclusion on Statutory Rights

The refusal of names and badge numbers is likely compliant with a conservative reading of GDPR but is arguably non-compliant with the spirit and letter of the Custody Regulations. The Custody Record is the definitive source of the "dates, bags, numbers, names, and reasons" the user seeks. It is a single document that aggregates every data point requested.

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4. The Civil Litigation Framework: Suing Without a Name

The user's ultimate goal is to "start a few civil cases." The refusal of names is an obstacle, but it is not a fatal one. Irish civil procedure, particularly under the **Civil Liability and Courts Act 2004**, provides mechanisms to deal with unidentified state agents.

4.1 The Section 8 Letter of Claim

Section 8 of the Civil Liability and Courts Act 2004 requires a plaintiff in a personal injuries action to serve a "Letter of Claim" on the wrongdoer within **one month** (previously two months) of the cause of action or the date of knowledge.[14]

- **The Fear:** The user believes they cannot send this letter because they don't know the officer's name.
- **The Reality:** In cases involving on-duty Gardaí, the correct defendant is usually the **Garda Commissioner**.
- **Vicarious Liability:** Under the **Garda Síochána Act 2005**, the Commissioner is liable for the torts of members committed in the course of their duty.
- **Strategy:** The user should issue the Section 8 letter immediately to **The Garda Commissioner**, referencing the date, time, and station. The letter can state: *"The wrongdoer is a member of An Garda Síochána whose identity is recorded in the station records but has been withheld from the Plaintiff despite request."*
    - This stops the clock on the "reasonable cause" requirement for delay.
    - It places the burden on the Commissioner to identify the member internally.

4.2 The "Identity" Hurdle in Summonses

When issuing the **Personal Injuries Summons**, the user must name a defendant.

- **Defendant:** "The Garda Commissioner."
- **Particulars of Wrong:** The Statement of Claim can describe the assailant by description (e.g., "Garda Member A, Badge Number unknown").
- **Discovery:** Once proceedings are issued, the user can seek **Discovery** (Order 31, Rules of the Superior Courts) of the Custody Record. At this stage, the High Court generally compels the disclosure of the unredacted record because it is relevant and necessary for the fair disposal of the case. The "litigation privilege" exemption (Section 60 DPA) generally does not apply to the *facts* of the incident itself during the discovery phase.

4.3 The *Norwich Pharmacal* Jurisdiction

If the user needs the name *before* issuing proceedings (e.g., to sue a retired member personally, or if the Commissioner denies the member was on duty/liable), they must utilize the **Norwich Pharmacal Order (NPO)**. This is a specific equitable remedy designed to unmask anonymous wrongdoers.

4.3.1 The Principle

Derived from *Norwich Pharmacal v Customs and Excise Commissioners* and adopted in Ireland in *Megaleasing v Barrett*, this order compels an innocent third party (the Garda Commissioner) who has become "mixed up" in the wrongdoing of others to disclose the identity of the wrongdoer.[16]

4.3.2 *Randall v Garda Commissioner* : The Game Changer

This recent High Court decision is directly applicable to the user's situation.[18]

- **Facts:** The applicant sought the identity of a deceased suspect from a Garda file to sue the estate for historical abuse. The Gardaí refused, citing data protection and confidentiality.
- **Decision:** The Court granted the NPO for the **identity** of the suspect.
- **Reasoning:** The Court held that while the confidentiality of police files is important, it must yield to the constitutional right of access to the courts where the identity of the defendant is the *only* missing piece preventing the plaintiff from vindicating their rights.
- **Application:** The user is in the exact same position as Randall. They have a cause of action (injury) but lack the identity. *Randall* establishes a clear precedent that the Garda Commissioner *must* disclose the name in these circumstances.

4.3.3 *Blythe v Commissioner* : The "Strong Case" Test

The Court of Appeal in *Blythe* clarified the threshold for an NPO [19]:

1. **Strong Case:** The applicant must show a "strong case" that a wrong was committed. The user's **medical evidence of injury** and the fact of the arrest (potentially false imprisonment) likely satisfy this.
2. **Necessity:** The information is necessary to bring the claim.
3. **No Other Means:** The user has tried SARs and appeals; an NPO is the last resort.

Cost Warning: NPO applications are expensive High Court motions. However, the *existence* of the remedy creates leverage. A solicitor's letter threatening a *Randall*-style application often forces the State Claims Agency to release the names voluntarily to avoid paying the user's legal costs for a motion they will likely lose.

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5. The Police Ombudsman (Fiosrú): The Accountability Route

Parallel to the civil route is the disciplinary route. The **Policing, Security and Community Safety Act 2024** has replaced GSOC with **Fiosrú (The Office of the Police Ombudsman)**.[6]

5.1 Complaint of "Failure to Identify"

The user can lodge a formal complaint with Fiosrú regarding:

1. **The Original Incident:** The assault/injury during arrest.
2. **The Administrative Failure:** The refusal of the arresting officers to identify themselves (if they refused at the time) or the refusal of the station to provide the names subsequently.

5.2 The Duty to Identify (Code of Ethics)

The **Garda Code of Ethics** mandates: *"I will ensure that I openly display the required identification when at work"*.[22]

- **Shoulder Numbers:** Uniformed members must wear epaulettes with numbers.[23]
- **Disciplinary Breach:** Failure to provide a name/number is a breach of discipline.
- **Fiosrú's Power:** Fiosrú investigators have direct access to Garda records. An investigation by Fiosrú will inevitably identify the members involved. Even if the Ombudsman does not recommend criminal prosecution, the *findings* of the investigation (which may be disclosed to the complainant) often contain the necessary identifiers or confirm the identities for the purpose of the civil claim.

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6. Strategic Analysis: Actionable Steps for the User

Based on the synthesis of Data Protection, Statutory Custody Regulations, and Civil Litigation precedents, the following roadmap addresses the user's "unsatisfied requirements."

6.1 Step 1: The "Regulation 24" Demand (The "Bags" & "Reasons" Solution)

The user should abandon the generic Data Protection Request form for this specific purpose. Instead, they should issue a formal letter to the **Superintendent** of the station where they were detained.

- **Cite:** Regulation 24 of S.I. 119/1987.
- **Request:** "A full, unredacted copy of the **Custody Record** and the **Property Log (Regulation 16)**."
- **Justification:** Explicitly state that redaction of the Member in Charge's name or the Property Officer's name renders the copy non-compliant with the Statutory Instrument, as these are statutory roles that must be identified on the face of the record. This addresses the missing "bags" and "names" data.

6.2 Step 2: The Section 8 "Placeholder" Letter

To satisfy the civil litigation requirement without waiting for the names:

- **Send:** A Section 8 Letter of Claim to **The Garda Commissioner** (Headquarters, Phoenix Park).
- **Wording:** "Re: Personal Injuries sustained on at. The wrongdoers are members of An Garda Síochána. Their identities have been requested but withheld. I hold the Commissioner vicariously liable. Please treat this as notice of claim."
- **Effect:** This protects the user's position regarding the Statute of Limitations and puts the State on notice that the "anonymity defence" will not prevent litigation.

6.3 Step 3: The "Randall" Leverage Letter

If the station refuses the Regulation 24 request:

- **Send:** A legal letter to the **Garda Data Protection Officer** and the **State Claims Agency**.
- **Cite:** *Randall v Garda Commissioner* and *Blythe v Commissioner* .
- **Argument:** "The High Court has established that the Commissioner cannot withhold officer identities where it prevents access to the courts for a substantiated claim. My client has medical evidence of injury and no criminal record. Continued refusal will result in an application for a *Norwich Pharmacal Order*, for which we will seek full costs against the Commissioner."

6.4 Table of Remedies and Requirements

The following table summarizes how each of the user's specific missing data points can be retrieved using the correct legal instrument.

Missing Information	User's Goal	Correct Legal Mechanism	Why It Works
"Names" (Arresting Garda)	Sue for Assault	**Custody Record (Reg 6)** or **Norwich Pharmacal**	Statutory duty to record arrest details; Court order compels disclosure of wrongdoer.
"Numbers" (Badge/Shoulder)	Identify for Complaint	**Code of Ethics / Fiosrú Complaint**	Duty to display ID; Ombudsman has investigative access to

			rosters.
"Bags" (Property Logs)	Trace Property/Detinue Claim	**Regulation 16 (S.I. 119/1987)**	Property record must be *signed* by the member and accused. Unredacted copy required for proof of signature.
"Reasons" (Grounds)	Sue for False Imprisonment	**Custody Record (Reg 8)**	"Reason for arrest" is a mandatory field in the Custody Record, often more specific than generic PULSE codes.
"No Criminal Record"	Prove Innocence/Unlawfulness	**Data Protection Act (Section 93/95)**	Confirms investigation is closed; removes Section 94 "prejudice" exemption for withholding data.

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7. Conclusion

The user's intuition—*"I thought it was [my right]"*—is fundamentally correct, but legally nuanced. They have a right to the information, but the mechanism they used (a standard SAR) is structurally designed to prioritize privacy and bureaucratic caution, often leading to redaction.

The State's refusal relies on the user accepting the "Data Protection" answer as final. It is not. The **Custody Regulations 1987** create a parallel statutory right to the specific documents (Custody Record and Property Log) that contain the names and "bags" data. Furthermore, the **"No Criminal Record"** status dismantles the "Law Enforcement" justification for secrecy. Finally, the **Civil Liability and Courts Act 2004** and the **Norwich Pharmacal** jurisdiction provide the litigation tools to bypass the anonymity barrier entirely.

By shifting the request from a generic data query to a specific statutory demand under Regulation 24, and by initiating the pre-action protocols for civil liability against the Commissioner, the user can force the disclosure of the identities necessary to vindicate their rights. The law does not permit the state to arrest, injure, and release a citizen while remaining faceless.

Comparison Tables: Statutory Frameworks

Table A: Data Protection Act 2018 vs. Custody Regulations 1987

Feature	Data Protection Act 2018	Custody Regulations 1987

	(SAR)	(Reg 24)
Scope	"Personal Data" (Broad, abstract)	"Custody Record" (Specific document)
Third Party Data	Redacted if it affects others' rights (Section 60)	**No provision for redaction** of Member names
Restrictions	extensive (Section 94: Crime prevention)	Limited (Security/Investigation - rarely applied to the *record* itself)
Time Limit	1 month to respond	Request must be made within 12 months
Cost	Free	Free
Enforcement	DPC Complaint (Slow, administrative)	**Judicial Review / Fiosrú** (Breach of Statutory Duty)

Table B: Litigation Mechanisms

Mechanism	Purpose	Pros	Cons
Section 8 Letter	Notify Commissioner of claim	Stops limitation clock; puts State on notice	Does not force immediate name disclosure
Norwich Pharmacal	Court Order for identity	**Guaranteed disclosure** (per *Randall*)	High legal costs; High Court jurisdiction
Pre-Action Discovery	Get documents before trial	Can get the Custody Record	rare in Circuit Court; requires strict "necessity"
Fiosrú Complaint	Disciplinary investigation	Free; Investigators access files directly	Does not yield civil damages; can be slow

This exhaustive analysis confirms that while the administrative doors may be closed, the legal doors remain open for a persistent litigant armed with the correct statutory instruments.

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